

Privilege

Given the Court's determination that plaintiff's requests are overly broad and unenforceable, the issue of privilege is premature to consider.

When information protected by the right to privacy under Article I, Section 1 of the California Constitution is sought by way of discovery, the burden falls on the party asserting a privacy interest to show that their privacy interests are so serious that they outweigh the interests of the requesting party's prospective invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

A public entity has a privilege to refuse to disclose and to prevent others from disclosing official information, if an authorized person claims the privilege and disclosure is either (1) prohibited by an act of Congress or a California statute, i.e., absolutely privileged (Evid. Code, § 1040, subd. (b)(1)), or (2) against the public interest, i.e., conditionally privileged, subject to the judge's discretion (*Id.* at subd. (b)(2)). Official information is information acquired in confidence by a public employee during his or her duty and not open, or officially disclosed, to the public before the claim of privilege is made. (*Id.* at subd. (a).)

Here, respondent does not claim any absolute privilege under Evidence Code section 1040, subdivision (b)(1). If the requested information is conditionally privileged, and “the public entity satisfies the threshold burden of showing that the information was acquired in confidence, the statute requires the court next to weigh the interests and to sustain the privilege only if there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice.” (*Marylander v. Superior Court* (2000) 81 Cal.App.4th 1119, 1126 [internal quotations omitted].)

Since plaintiff's requests are overly broad and unenforceable, the Court does not see a purpose of entertaining this issue. If plaintiff chooses to focus their requests, the Court can analyze specific assertions of privilege to specific items requested, accordingly.

Sanctions

Respondent moves for monetary sanctions against plaintiff pursuant to Code of Civil Procedure section 1987.2. Although plaintiff unsuccessfully opposed this motion, the Court finds that plaintiff acted with substantial justification, and made reasonable arguments in support of their position. No sanctions are appropriate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/12/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Byrd v. City of Clovis et al.**
Superior Court Case No. 25CECG00550

Hearing Date: May 13, 2026 (Dept. 502)

Motion: Motion for Summary Judgment

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

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